

STATE OF NORTH CAROLINA		File No. 1998CR000000704118-B		Scan No.(s)	
Cumberland County		In The General Court Of Justice ☐ District ☐ Superior Court Division			
NOTE: This petition requires the payment of a filing fee unless the petitioner is an indigent. For expunction of nonviolent felonies under G.S. 15A-145.5, use form AOC-CR-297.					
STATE VERSUS			PETITION AND ORDER OF EXPUNCTION UNDER G.S. 15A-145.5 (NONVIOLENT MISDEMEANOR(S))		
Name And Address Of Petitioner (type or print full name) Marguerite-Antoinette Vanderhoeven-Castellanos 12417 Old Fayetteville Plank Road, Building C, Apartment 2210 Fayetteville NC 28306-4471			G.S. 15A-145.5, -150		
Drivers License No.		State	Race	Sex	
Date Of Birth 1959-02-28		Full Social Security No.			
NOTE TO PETITIONER: List the arresting agency and any State or local government agency that has a record of your case. You must provide complete information for each agency. The clerk of superior court will send a copy of this order, if granted, to the agency name(s) and address(es) provided below. The clerk will not provide addresses for you. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will not send a copy of this order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.					
Name And Address Of Arresting Agency		Name And Address Of Other Agency (if any)		Name And Address Of Other Agency (if any)	
☐ Check here to indicate that additional agencies and/or additional file nos. and offenses are listed on an AOC-CR-285 form that is attached to this petition. (attach form)					
File No.(s)	Date Of Arrest	Offense Description		Date Of Offense	Disposition Date Of Disposition/Conviction
PETITION/MOTION TO EXPUNGE					
I hereby move for an expunction pursuant to G.S. 15A-145.5 and certify as follows: 1. In the county named above I pled guilty to or was found guilty of the nonviolent misdemeanor(s) listed above, and further certify that: (i) no offense listed above is a Class A1 misdemeanor; and (ii) no offense listed above is an exception identified in G.S. 15A-145.5 as ineligible for expunction. 2. This petition is being filed as a motion in the cause in the case wherein I was convicted, after the applicable waiting period: (check one) ☐ For expunction of one nonviolent misdemeanor, at least three (3) years after the date of conviction listed above or when any active sentence, period of probation, and post-release supervision has been served, whichever occurred later. I hereby acknowledge that except as provided in G.S. 15A-145.5(c5), the expunction of one nonviolent misdemeanor prior to a 7-year waiting period will preclude me from expunging additional nonviolent misdemeanors that might otherwise be eligible for expunction. ☐ For expunction of more than one nonviolent misdemeanor, either listed above or listed in this and another petition(s) filed in separate counties pursuant to G.S. 15A-145.5(c4), at least seven (7) years after my last conviction, other than a traffic offense not listed in any such petition, or seven (7) years after any active sentence, period of probation, and post-release supervision has been served, whichever occurred later. 3. I have attached to this petition the affidavits required by G.S. 15A-145.5(c1).					
I certify that this petition and the required affidavits have been filed in this case and that the information set forth above is a complete and accurate statement of the information on file in the office of the clerk of superior court. I hereby request and authorize a name-based State and national criminal record check by the State Bureau of Investigation, a search by the State Bureau of Investigation for any outstanding warrants or pending criminal cases, and a search of the confidential record of expunctions maintained by the NC Administrative Office of the Courts.					
Date	Name (type or print)		Signature		☐ Petitioner ☐ Petitioner's Attorney
CERTIFICATE OF SERVICE					
I certify that a copy of this motion was served by: ☐ delivering a copy personally to the district attorney. ☐ leaving a copy at the office of the district attorney with an associate or employee. ☐ depositing a copy enclosed in a postpaid properly addressed envelope in a post office or official depository under the exclusive care and custody of the U.S. Postal Service, directed to the district attorney. ☐ email (☐ from ICMS/OFS) to the district attorney at _____, the email address of record with this court for that person.					
Date Served	Name Of Person With Whom Copy Left (type or print)		Signature Of Person Serving		
☐ Service accepted by the district attorney.					
Date Service Accepted	Name Of Person Accepting Service (type or print)		Signature Of Person Accepting Service		
NOTE TO CLERK: Regardless of when the reports are returned by the SBI and NCAOC, as provided on the reverse, the hearing may not be scheduled earlier than 30 days after service of the petition on the district attorney.					
REQUEST BY JUDGE					
To The State Bureau Of Investigation, Attn: CIIS Expungement Unit, 3320 Garner Road, Raleigh, NC 27610: Please prepare, certify on the reverse side, and attach to this Request any Criminal History Record Information (CHRI) and the results of a search for outstanding warrants or other pending criminal cases for the petitioner, then forward this Request with CHRI attached, confidentially to: Records Officer, Administrative Office of the Courts. To The Records Officer, Administrative Office Of The Courts, PO Box 2448, Raleigh, NC 27602: Complete the report on the reverse side and return it, along with the information attached by the SBI, to the clerk of superior court.					
Date	Name Of Presiding Judge (type or print)		Signature Of Presiding Judge		

(Over)

CRIMINAL HISTORY RECORD INFORMATION, OUTSTANDING WARRANTS, PENDING CASES			
To Any Presiding Judge In The Above-Named County And Court: (Confidential) I have conducted a search of the criminal records of the North Carolina State Bureau of Investigation and the Federal Bureau of Investigation, and a search for outstanding warrants or pending criminal cases, based on the information provided, which has not been verified by fingerprint comparisons, and certify that ☐ there is no criminal record and no record of outstanding warrants or pending criminal cases for the petitioner other than the offense(s) identified on the reverse of this form. ☐ the Criminal History Record Information which is attached is a true and accurate statement of all information contained in the criminal records of the State and Federal Bureaus of Investigation for the petitioner identified on the reverse side of this form.			
Date	SID No.	Name Of SBI Official (type or print)	Signature Of SBI Official
REPORT BY ADMINISTRATIVE OFFICE OF THE COURTS			
To Any Presiding Judge In The Above-Named County And Court: (Confidential) I have searched the confidential file of the names of all persons granted an expunction in North Carolina and certify that ☐ there is no record under the name of the petitioner of any expunction under any statute of North Carolina. ☐ there is a record under the name of the petitioner identified on the reverse side and it is attached to this form.			
Date	Name Of Records Officer (type or print) Courtney Bailey		Signature Of Records Officer
FINDINGS OF FACT			
After a hearing on the petition/motion, the Court makes the following findings of fact: ☐ 1. Petitioner was convicted of the nonviolent misdemeanor(s) listed and in the file number(s) shown on Side One. ☐ 2. Each offense(s) of conviction listed on Side One is eligible for expunction under G.S. 15A-145.5. ☐ 3. Petitioner was convicted of, and completed any sentence received for, the offense(s) listed on Side One: (i) at least three years prior to the filing of this petition for one nonviolent misdemeanor; or (ii) at least seven years prior for more than one nonviolent misdemeanor, as listed on Side One and/or listed in this and another petition(s) filed in separate counties pursuant to G.S. 15A-145.5(c4). ☐ 4. Petitioner: (check one) ☐ a. has not previously been granted an expunction for one or more nonviolent misdemeanors under G.S. 15A-145.5. ☐ b. previously has been granted an expunction for one or more nonviolent misdemeanors under G.S. 15A-145.5, but pursuant to subsection (c4) or (c5) of that section, the prior expunction(s) does not prohibit the relief sought herein. ☐ The Court finds good cause to grant this petition, notwithstanding its filing more than 120 days apart from another petition filed pursuant to subsection (c4). ☐ 5. Petitioner is of good moral character. ☐ 6. Petitioner has no outstanding warrants or pending criminal cases, is not under indictment, and no finding of probable cause exists against the petitioner for a felony in any federal court or state court in the United States. ☐ 7. Petitioner is not free on bond or personal recognizance pending trial, appeal, or sentencing in any federal or state court in the United States for a crime that would prohibit this petition for expunction from being granted. ☐ 8. Other than a traffic violation not listed on Side One, the petitioner has no other felony or misdemeanor convictions during the applicable waiting period set forth in G.S. 15A-145.5(c). ☐ 9. Petitioner has no convictions for a misdemeanor or felony listed as an exception to "nonviolent misdemeanor" or "nonviolent felony" in G.S. 15A-145.5(a). ☐ 10. Petitioner has no outstanding restitution orders or civil judgments representing amounts ordered for restitution entered against him/her. ☐ 11. The Court has reviewed all other information the Court deems relevant to this petition, including, but not limited to, affidavits or other testimony provided by law enforcement officers, district attorneys, and victims of crimes committed by Petitioner. 12. Petitioner ☐ is ☐ is not eligible for an expunction of the offense(s) listed on Side One. If not eligible, it is because: _____			
ORDER			
Therefore, the Court hereby ORDERS: ☐ 1. The petition is granted. It is ordered that: a. any and all entries relating to the petitioner's charge or conviction shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge any and all records of the petitioner's criminal charge and any conviction resulting from the charge. The Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151. b. any other State or local government agency shall expunge from its records entries made as a result of the conviction(s) ordered expunged herein upon receipt of a copy of this Order from the petitioner. Any such agency shall also vacate any administrative actions taken against petitioner as a result of the charge or conviction expunged, except that this subsection b. shall not apply to the Department of Justice DNA records and samples stored in the State DNA Database and the State DNA Databank. ☐ 2. For the reason(s) identified in Finding No. 12, the petition is denied. NOTE TO CLERK: If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition, such as a criminal history report and any NCAOC report of prior expunctions. If granted, send a certified copy of this Order to the petitioner at the address listed on Side One or an updated address as provided by the petitioner.			
Date	Name Of Presiding Judge (type or print)		Signature Of Presiding Judge
CERTIFICATION BY CLERK			
I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition.			
Date	Name (type or print)	Signature Of Clerk	☐ Dep. CSC ☐ Asst. CSC ☐ Clerk Of Superior Court SEAL
NOTE TO CLERK: If granted, always send a certified copy of this Order under seal to the petitioner, to all the agencies listed in Certification By Clerk above, and to the NCAOC. Send copies for the arresting agency and additional agencies to the addresses provided by the petitioner. Send SBI, DAC, DMV, and NCAOC copies to: State Bureau of Investigation NC Department of Adult Correction NC Division of Motor Vehicles, Driver and Vehicle Services, Driver Assistance Branch NC Administrative Office of the Courts Attn: Expunction Unit Attn: Combined Records Section Attn: Hearings/Adjudication Unit Attn: Records Officer 3320 Garner Road 4226 Mail Service Center 3118 Mail Service Center PO Box 2448 Raleigh, NC 27610 Raleigh, NC 27699-4226 Raleigh, NC 27699-3118 Raleigh, NC 27602			
NOTE TO PETITIONER: If this petition is granted, the clerk of superior court will send you a certified copy of the final order for your records at the address listed on Side One. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk of superior court will have no record of the case and will be unable to provide you with any documentation of the case. This includes the expunction order; it will be destroyed with the case file.			
AOC-CR-298, Side Two, Rev. 7/25 (replaced AOC-CR-281 for nonviolent misdemeanor petitions) © 2025 Administrative Office of the Courts			

**INSTRUCTIONS FOR PETITION AND ORDER OF EXPUNCTION UNDER G.S. 15A-145.5
(NONVIOLENT MISDEMEANOR(S))**

FORM AOC-CR-298, Rev. 7/25

The procedure for completion of the AOC-CR-298, Petition And Order Of Expunction Under G.S. 15A-145.5 (Nonviolent Misdemeanor(s)) is as follows:

1. **Print clearly and legibly, using only black ink.** If you wish to submit a typed petition, the form is available electronically on the NCAOC's website at www.nccourts.gov/documents/forms. In the "Contains" field, enter the number of the petition, AOC-CR-298. Searching by the form number will provide you with a link to a fillable PDF version of the form.
2. No order should be entered until this form has been completed by the petitioner, a judge, the State Bureau of Investigation (SBI), and the Administrative Office of the Courts (NCAOC) and has been returned to the clerk of superior court as explained below.
3. The petitioner or attorney should complete all offense information on Side One of the form from the court file. Please pay special attention to correctly identifying the arresting agency(ies) and any other State or local agency that has a record of the case. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will **not** send a copy of the order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.
4. Complete and sign the petition. Attach the affidavits required by G.S. 15A-145.5(c1), and serve a copy of the petition on the district attorney. The affidavits are listed in No. 13 below. (**NOTE:** *There are no NCAOC forms specifically for expunction affidavits. You may, but are not required to, use form AOC-CR-158 for these affidavits.*) Thereafter, follow the clerk's instructions for obtaining a judge's signature on the "Request By Judge" and for forwarding the petition to the SBI.
5. For expungements under G.S. 15A-145.5, a fee of \$175.00 must be paid to the clerk at the time the petition is filed.
6. The SBI will complete the Criminal History Record Information and a search for outstanding warrants and pending criminal cases and forward it to the NCAOC.
7. The NCAOC will complete the record and mail it to the clerk in the county where the expunction is pending.
8. The clerk places the sealed envelope in the file, to be opened by the presiding judge when the petition is heard.
9. It is the responsibility of the petitioner to determine when the AOC-CR-298 has been returned and to ask the clerk or DA to schedule the petition for hearing.
10. If an order of expunction is entered, the clerk makes copies of the order, completes "Certification By Clerk" on each copy, and sends certified copies to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, the arresting agency and any other State or local government agency identified on the petition, and the NCAOC.
NOTE: The clerk of superior court will send you a certified copy of the final order. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk will have no record of the case and will be unable to provide any documentation of the case. This includes the expunction order; it will be destroyed with the case file.
11. The clerk retains the original order of expunction to be disposed of with the papers in this case.
12. If the petition is denied, the clerk will retain the original of the denied petition, but any information from the SBI or NCAOC shall be destroyed, unless the court orders otherwise.
13. List of required affidavits under G.S. 15A-145.5(c1):
 - (1) An affidavit by the petitioner that the petitioner is of good moral character and has not been convicted of any other felony or misdemeanor, other than a traffic violation, under the laws of the United States or the laws of this State or any other state during the applicable waiting period set forth in G.S. 15A-145.5(c).
 - (2) Affidavits of two persons who are not related to the petitioner or to each other by blood or marriage, that they know the character and reputation of the petitioner in the community in which the petitioner lives and that the petitioner's character and reputation are good.
 - (3) An affidavit by the petitioner that no restitution orders or civil judgments representing amounts ordered for restitution entered against the petitioner are outstanding.
 - (4) An affidavit by the petitioner providing information on any additional petitions the petitioner has submitted, or intends to submit, in other counties pursuant to G.S. 15A-145.5(c4), seeking expunction of additional convictions.

NOTE TO PETITIONER: *The expunction of your case information from the records of the court and of other State and local government agencies does not guarantee that the information will be expunged from all other sources. Private companies routinely acquire copies of criminal records from State and local criminal justice agencies. Certain private entities are required to expunge your case information upon receiving notice of the expunction order, but there may be a delay between entry of the order of expunction and deletion from the entity's records. Further, that duty to expunge does not apply to all private entities. If a private entity distributes information about your expunged case, contact the private entity to determine which government agency was the source of the information, and then contact that government agency to determine whether or not the expunction order was received. If the private entity claims that the NCAOC was the source of the information, contact the NCAOC's Remote Public Access office at rpa@nccourts.org or (919) 890-2220 to investigate the entity's claim.*

(TYPE OR PRINT IN BLACK INK)

STATE OF NORTH CAROLINA

Cumberland County

File No.

1998CR000000704118-B

In The General Court Of Justice

☐ District ☐ Superior Court Division

Name Of Applicant

Marguerite-Antoinette Vanderhoeven-Castellanos

Street Number And Street Name, Including Apartment Or Unit Number If Applicable

12417 Old Fayetteville Plank Road, Building C, Apartment 2210

City, State And Zip Code

Fayetteville NC 28306-4471

Full Permanent Mailing Address Of Applicant (if different than above)

Telephone Number Of Applicant

(910) 555-0188 ext. 20114

Date Of Birth

1959-02-28

CIVIL AFFIDAVIT OF INDIGENCY

G.S. 7A-450 et seq.

☐ Plaintiff

☐ Defendant

Applicant: (answering this question is optional) Have you ever served in the United States Armed Forces? ☐ Yes ☐ No

MONTHLY INCOME (money you make)

MONTHLY EXPENSES (money you pay out)

Employment - Applicant

\$

Number Of Dependents

Name And Address Of Applicant's Employer
(If not employed, state reason; if self-employed, state trade)

Shelter ☐ Buying ☐ Renting

\$

Food (including Food Stamps)

\$

Utilities (power, water, heating,
phone, cable, etc.)

\$

Other Income (Welfare, Food Stamps,
S/S, Pensions, etc.)

\$

Health Care

\$

Employment - Spouse

\$

Installment Payments

☐ Vehicle ☐ Other

\$

Name And Address Of Spouse's Employer

Car Expenses (gas, insurance, etc.)

\$

Support Payments

\$

Other: (specify)

\$

Total Monthly Income

\$

Total Monthly Expenses

\$

DESCRIPTION OF ASSETS AND LIABILITIES

ASSETS
(things you own)

LIABILITIES
(amounts you owe)

Cash On Hand And In Bank Accounts (list name of bank and account type,
do not list account no.)

\$

Money Owed To Or Held For Applicant

\$

Motor Vehicles (list make, model, year)

\$

(Fair Market Value)

\$

(Balance Due)

Real Estate

\$

(Fair Market Value)

\$

(Balance Due)

Personal Property

\$

(Fair Market Value)

\$

(Balance Due)

Other Debts

\$

Last Income Tax Filed 20 _____ ☐ Refund ☐ Owe

\$

\$

Other

\$

\$

Total Assets And Liabilities

\$

\$

Bond Type

Amount

\$

By Whom Posted

NOTE: Read the notice on the reverse side before completing this form.

(Over)

NOTICE TO PERSONS REQUESTING INDIGENCY OR PARTIAL INDIGENCY DESIGNATION

1. When answering the questions on the Affidavit Of Indigency (*reverse side of this form*), please do not discuss your case with the interviewer. The interviewer can be called as a witness to testify about any statements made in his/her presence. Please wait and speak with your lawyer. Do not ask the interviewer for any advice or opinion concerning your case.
2. **A designation of indigency relieves your obligation to pay all of the arbitration fee. A designation of partial indigency requires you to pay your appropriate percentage of your pro rata share of the arbitration fee prior to arbitration. Failure to pay the arbitration fee will result in the entry of a civil judgment against you, which will accrue interest at the legal rate set out in G.S. 24-1 from the date of the entry of judgment. Your North Carolina Tax Refund and/or North Carolina Lottery winnings may be taken.**
3. The information you provide may be verified, and your signature below will serve as a release permitting the interviewer to contact your creditors, employers, family members, and others concerning your eligibility for an indigency designation. A false or dishonest answer concerning your financial status could lead to prosecution for perjury. See G.S. 7A-456(a) ("A false material statement made by a person under oath or affirmation in regard to the question of his indigency constitutes a Class I felony.").

Under penalty of perjury, I declare that the information provided on this form is true and correct to the best of my knowledge, and that I am financially unable to pay all or part of the arbitration fees prior to the arbitration. I now request that I be designated indigent or partially indigent. I authorize the Court to contact my creditors, employers, or family members, any government agencies or any other entities listed below concerning my eligibility for such designation.

I further authorize my creditors, employers, or family members, any governmental agencies or any other entities listed below to release financial information concerning my eligibility for such designation upon request of the Court.

Governmental Agencies Or Other Entities Authorized To Be Contacted And/Or To Release Information

SWORN/AFFIRMED AND SUBSCRIBED TO BEFORE ME		<i>Date</i>
<i>Date</i>	<i>Signature</i>	<i>Signature Of Applicant</i>
☐ <i>Deputy CSC</i> ☐ <i>Assistant CSC</i> ☐ <i>Clerk Of Superior Court</i> ☐ <i>Magistrate</i>		<i>Name Of Applicant (type or print)</i>
☐ <i>Notary</i>	<i>Date My Commission Expires</i>	☐ <i>Plaintiff</i> ☐ <i>Defendant</i>
SEAL	<i>County Where Notarized</i>	